

Form No.HCJD/C-121

ORDER SHEET

LAHORE HIGH COURT

MULTAN BENCH MULTAN

JUDICIAL DEPARTMENT

F.A.O.No. 12 of 2025.

Ashfaq Ahmed **vs** District & Sessions Judge/Presiding Officer
District Consumer Court, Multan & another

Sr. No. of order/ proceedings	Date of order/ proceedings	Order with Signature of Judge, and that of parties or counsel, where necessary.
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21.02.2025. Mr. Abid Ali Bodla, Advocate for the appellant.

At the very outset, office has reported that this appeal is barred by 41 days and by filing C.M.No.2 of 2025, the applicant/appellant is seeking its condonation.

2. The appellant has preferred this appeal under Section 33 of the Punjab Consumer Protection Act, 2005 (*hereinafter the ‘Act’*) against the order dated 08.11.2024, passed by the learned District Consumer Court, Multan, whereby the court proceeded to partly accept the claim of respondent No.2/claimant.

3. Briefly the facts forming background of this appeal are that respondent No.2 purchased Air-Conditioner (12 ton) from the appellant, who delivered the same, however, after checking it was found defective and substandard. It was alleged by respondent No.2 in the claim that he made a complaint to the appellant, who sent his company electrician/representative, but the defect of air-conditioner was not removed. Respondent No.2 further alleged that on 18.11.2022, he returned the air-conditioner to the appellant, who made a promise to replace the air-conditioner with new one or return its price, but despite his repeated contact, neither the appellant replaced the air-conditioner nor returned its

price, which constrained him to file the claim before the consumer court.

4. Learned counsel for the appellant submits that at the time of passing impugned order the appellant was not available in Pakistan. Further contends that there is no deliberation on the part of the appellant regarding delay in filing the instant appeal. Also submits that it is the mandate of law that matters should be decided on merits, instead of knocking out the parties on the basis of technicalities.

5. I have heard learned counsel for the appellant and perused the available record carefully.

6. It is straightaway observed by this Court that this appeal is time-barred and is accompanied by C.M.No.2 of 2025 seeking condonation of delay of 41 days. In this regard, the Court will first examine the reasons provided for the delay, and if the same are found to be rational and justifiable, it will then proceed to consider the merits of the case.

7. The appellant is seeking condonation of delay on the basis of reason mentioned in Para No.3 of C.M.No.2 of 2025, which is reproduced as under:-

“3. That the Applicant/Petitioner was out of country at the time of passing of adverse orders in the matter and even was not available in Pakistan at the time of announcement of Impugned Order dated 08.11.2024. A complete travel history along-with the proof of tickets is attached herewith the instant appeal.”

From perusal of contents of the application seeking condonation of delay, an inference can easily be drawn that the reason assigned is inexplicit, general and not true, which is neither permissible nor satisfactory to convince the Court to condone the delay in filing the

appeal. Moreover, the appellant has placed on the record contrary documents, which could not strengthen his cause. He opted the stance that the impugned order was passed in his absence, when he was abroad. In this matter, the impugned order was passed on 08.11.2024 and the appellant came back to Pakistan on 12.11.2024, meaning thereby that prima facie he was having the knowledge of passing the impugned order.

8. In terms of Section 33 of the Act any person aggrieved may file an appeal within 30 days against final order of the consumer court passing such an order. The rationale behind this provision is to ensure that judgments become conclusive within a reasonable timeframe to prevent indefinite litigation and fair opportunity for Appeal. Granting an aggrieved party adequate time to challenge an order while maintaining procedural discipline that statutory limitation periods are not mere technicalities but substantive provisions that serve to promote finality in litigation and judicial efficiency.

9. From perusal of travel history (Annexure-C) of the appellant, it is manifestly clear that w.e.f. 12.11.2024 to 31.12.2024, he was available in Pakistan, meaning thereby the order should have been challenged till 08.12.2024, as such, this stance of the appellant appears to be intangible. The appellant's failure to challenge the impugned order within the prescribed time despite being available in the country during the relevant period reflects a lack of diligence in pursuing his legal remedy. The explanation offered for the delay, in light of the appellant's presence in Pakistan, does not appear to be convincing or sufficient to justify the delay in filing the appeal. Law is well settled that mere filing an application

for condonation of delay is not sufficient to persuade the Court to condone the delay in preferring an appeal.

10. The law mandates strict adherence to limitation period, courts possess discretion to condone delay in exceptional circumstances. This discretion, however, must be exercised sparingly and cautiously. A party seeking condonation must prove that the delay resulted from circumstances beyond its control, such as: Force majeure events (e.g., natural disasters, unforeseen emergencies), Court closures due to extraordinary circumstances, legal impediments preventing timely filing. A casual approach or mere administrative lapses do not constitute sufficient cause for condonation of delay. If the delay is found to be intentional, avoidable or due to negligence, the appeal must be dismissed. The doctrine of limitation is based on the principle that “condonation of delay is an exception, not the rule”

11. It is settled law that impediments of limitation cannot be traversed under pretense of hardships or imaginary inherent discretionary jurisdiction of the Court. Negligence, mistake or hardship do not save limitation nor does poverty of the parties. The Hon’ble Supreme Court of Pakistan in case of **KHUSHI MUHAMMAD through L.Rs. and others vs. Mst. FAZAL BIBI & others - PLD 2016 Supreme Court 872** held as under:

“4(1) The law of limitation is a statute of repose, designed to quieten title and to bar stale and water-logged disputes and is to be strictly complied with. Statutes of limitation by their very nature are strict and inflexible.....”

12. The object of law of limitation is to help the vigilant and not the indolent. Law of limitation is required to be construed strictly and the delay of each day has to be explained, for which the appellant had to

satisfy as to why he took about 41 days to prefer this appeal against the order dated 08.11.2024 of the consumer court. The reasons provided in the application for condonation of delay do not constitute a sufficient cause within the meaning of law. Thus, in the absence of sufficient cause, a time-barred appeal must be dismissed. I am fortified from the case-law reported as **Ghulam Sarwar through L.Rs. vs. Province of Punjab through District Collector, Lodhran - PLD 2025 Supreme Court 60).**

13. Section 34 of the Act deals with the finality of order. This provision in consumer law is acknowledged as finality clause which stipulates that once the statutory appeal period, typically 30 days expires, the judicial order issued by the consumer court attains finality and becomes legally enforceable. This provision is crucial for upholding judicial discipline, preventing the misuse of appellate mechanisms, and ensuring that justice is not indefinitely delayed. Without such a clause, courts would be susceptible to an influx of untimely or repetitive appeals, which could obstruct the prompt enforcement of consumer remedies and exacerbate judicial backlog.

14. Through imposition of a fixed limitation period for appeals, the legal framework provides certainty and closure to both parties, ensuring that judicial orders rest on a firm legal foundation. This requirement compels aggrieved parties to act within the prescribed timeframe, discouraging dilatory tactics designed to evade legal obligations. The strict enforcement of appeal deadlines except in exceptional circumstances, is vital for preserving the efficiency of judicial proceedings and safeguarding consumer rights. Ultimately, the finality clause functions as a legal safeguard that solidifies the binding nature of judicial orders once the appeal period

lapses, thereby promoting the expeditious resolution of consumer disputes, and reinforcing the stability as well as predictability of legal proceedings.

15. In view of above discussion, the merits of the case are not required to be discussed, as the appellant has badly failed to substantiate his claim for condonation of delay in filing the appeal. Hence, the instant application being devoid of any merits is **dismissed in *limine*.**

Main appeal.

On the basis of passing order of even date in C.M.No.2 of 2025, this appeal is **dismissed**, being time barred.

(Malik Javid Iqbal Wains)
Judge

Approved for Reporting

Judge

M.AYYUB